

the City itself. Her inclusion therefore adds nothing not already encompassed by the City's presence as a respondent.

Independently, Ms. McVey is entitled to statutory immunity under Government Code sections 820.2 and 821.6. Section 820.2 provides that a public employee is not liable for injury resulting from a discretionary act or omission within the scope of employment. (Gov. Code § 820.2.) Section 821.6 provides that a public employee is not liable for injury caused by instituting or prosecuting any judicial or administrative proceeding within the scope of employment, even if the employee acts maliciously or without probable cause. (Gov. Code § 821.6.) The conduct attributed to Ms. McVey – receiving Petitioner's appeal, evaluating its timeliness under the Brentwood Municipal Code, and communicating the City's determination – constitutes both the exercise of discretion within the scope of employment and the prosecution of an administrative proceeding. Both immunity provisions apply.

The demurrer as to Ms. McVey is **SUSTAINED WITHOUT LEAVE TO AMEND** on both grounds. Amendment cannot cure either defect.

V. Conclusion

The City failed to comply with the service requirements of Brentwood Municipal Code section 5.70.070(B)(1), and, as a result, the ten-day appeal period was not properly triggered. The June 3, 2025 appeal was therefore timely and Petitioners exhausted their administrative remedies.

The writ petition itself, however, was not filed within the 90-day period prescribed by Code of Civil Procedure section 1094.6, and equitable tolling is not established on the current record.

For the preceding reasons, the demurrer to the first cause of action for a Writ of Mandate under Code of Civil Procedure section 1094.5, the third cause of action for Declaratory Relief, and the fourth cause of action for Injunctive Relief is **SUSTAINED WITH LEAVE TO AMEND** solely to allow Petitioners to allege facts, if any exist, sufficient to establish objectively reasonable and good-faith conduct during the limitations period under the third element of *Saint Francis Memorial Hospital v. State Dept. of Public Health* (2020) 9 Cal.5th 710. No other amendments are permitted. The demurrer to the second cause of action for Traditional Mandamus under Code of Civil Procedure section 1085, and the demurrer as to Ms. McVey is **SUSTAINED WITHOUT LEAVE TO AMEND**.

24. 9:00 AM CASE NUMBER: N26-0113
CASE NAME: PETITION OF: CA DEPARTMENT OF MOTOR VEHICLES
HEARING IN RE: CERT OF FACTS THAT JUSTIFY CONTEMPT SANCTIONS
FILED BY: CA DEPARTMENT OF MOTOR VEHICLES
TENTATIVE RULING:

The Court received the parties' stipulation to vacate the OSC hearing. However, no proposed form of order was attached. The hearing shall be vacated and the moving party to re-submit a form of order for the Court's approval and entry.

Discovery Law & Motion

25. 9:01 AM CASE NUMBER: N23-0911
CASE NAME: VINCENT SARGENTINI VS. PATRICK CLARK
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION FROM RICHMOND ROD & GUN CLUB, SET ONE**
FILED BY: SARGENTINI, VINCENT
TENTATIVE RULING:

This matter is ordered off calendar and referred to the court-appointed discovery referee pursuant to the Order signed April 8, 2026.

Law & Motion
Add On

26. 9:00 AM CASE NUMBER: C24-00086
CASE NAME: EMIL MOUTON VS. ALLAN MENDIETA
HEARING ON MOTION TO STRIKE: 1ST AMENDED COMPLAINT
FILED BY: MENDIETA, ALLAN S.
TENTATIVE RULING:

Before the Court is a motion by defendant Allan Mendieta to strike plaintiffs' punitive damage allegations and prayer in the operative first amended complaint. For the reasons set forth, the motion to strike is **GRANTED IN ITS ENTIRETY**.

Background

Plaintiffs Emil Mouton and Elizabeth Kelly allege they were injured in a motor vehicle accident. The driver of the other vehicle was defendant Allan Mendieta. Plaintiffs sued Mr. Mendieta for the negligence (motor vehicle) and general negligence. The Court granted them leave to amend their original complaint to allege additional facts and attempt to state a basis for seeking punitive damages.

Mr. Mendieta has filed a motion to strike the punitive damages allegations and prayer for relief. Plaintiffs oppose the motion.

Procedural Objection – Late Filing

A motion to strike pursuant to Code of Civil Procedure sections 435 and 436 is subject to the same deadlines as a demurrer. Specifically, a motion to strike may be served and filed "within the time allowed to respond to a pleading." (Code Civ. Proc. § 435(b)(1).) (*See also* Cal. R. Ct., Rule 3.1322(b) ["A notice of motion to strike must be given within the time allowed to plead, and if a demurrer is interposed, concurrently therewith, and must be noticed for hearing and heard at the same time as